

PLANNING DISCLOSURE REPORT

57 Lucinda Avenue, Wahroonga NSW 2076

Prepared: 16 April 2026 Lat/Lng: -33.724555, 151.109244

Prepared by **Verify** — NSW Property Intelligence

The following are NOT disclosed in a standard s10.7(2) certificate or title search — this report checks all of them:

▲ **Biodiversity Values Map (BDAR trigger)** · ▲ **Riparian Land** · Wetlands · Landslide Risk · Flood Planning Area · DCP Setbacks (with clause citations) **2 constraint(s) identified at this property — see Risk Summary.**

This report covers	Not included — order separately
✓ Zone, height limit, FSR, minimum lot size ✓ Heritage items and conservation areas ✓ Acid sulfate soils classification ✓ SEPP overlays (spatial + statewide) ✓ Environmental constraints: biodiversity, riparian, wetlands, landslide, flood ✓ Development feasibility: granny flat, subdivision, CDC, GFA headroom, land tax ✓ Strata and company title detection ✓ DCP setback controls with clause citations — Currently Inner West LGA only — email info@plotdetect.com.au to add your LGA ✓ Nearby DA activity (200m, 12 months) ✓ VG land value and 5-year trend	– Section 10.7 Planning Certificate (order from council) – Title search (order via InfoTrack or equivalent) – Strata inspection report (order via strata inspector) – Survey or identification report

1. Risk Summary

Constraint	Finding	Source
Heritage Listing	Clear	NSW Planning Portal
Acid Sulfate Soils	Class 5	NSW Planning Portal
LEP Key Site or Special Provision	Clear	NSW Planning Portal
Biodiversity Values Map (BDAR trigger)	Trigger risk — BDAR may apply	PostGIS
Riparian Land	Riparian corridor present	PostGIS
Wetlands	Clear	PostGIS
Landslide Risk	Clear	PostGIS
Flood Planning Area	Clear	NSW Planning Portal
Foreshore Building Line	Clear	PostGIS
Classified Road Frontage (9 m setback)	Clear	PostGIS
Northern Development Shadow Risk	Clear — a 9.5 m building on the northern adjacent lot would not significantly shadow this property on any Jun 21 scenario.	NSW LEP · shadow model

Not assessed — flood, riparian, wetlands and landslide mapping is not yet available for this LGA. This data is held at council level and is being added LGA by LGA. Email info@plotdetect.com.au to request priority coverage for your area.

LEP Key Site or Special Provision — a planning designation under the Local Environmental Plan identifying the parcel for strategic development or applying special development controls. Unrelated to environmental sensitivity. **Biodiversity Values Map (BDAR trigger)** — whether the land is mapped under the Biodiversity Conservation Act 2016. A positive result triggers a Biodiversity Development Assessment Report (BDAR), typically \$15,000–\$50,000 and 4–12 months. Not disclosed in a s10.7 certificate.

Sources: planning designations (Heritage, ASS, Key Site) — NSW Planning Portal. Environmental overlays (Biodiversity–Flood) — PostGIS spatial database, not returned by standard title searches or s10.7 certificates. Coverage: 33 Greater Sydney LGAs.

2. Development Feasibility Snapshot

Answers to the questions buyers most frequently ask. Based on LEP controls, valuation data and environmental overlays. Each finding requires professional planning advice before acting.

Question	Finding	Basis
Secondary dwelling (granny flat)	Likely permissible	Zone R2 + lot area 1,802 m ² ≥ 450 m ² minimum. Subject to DCP setback and height controls.
Torrens title subdivision	Not feasible — lot too small	Lot area 1,802 m ² < 2 × 930 m ² LEP minimum.
Complying Development Certificate (CDC)	Restricted — biodiversity sensitivity overlay	CDC eligibility affected by: biodiversity sensitivity overlay. Development will likely require a full DA.
Development potential (max permissible GFA)	541 m²	Lot 1,802 m ² × FSR 0.3:1. Existing improvements reduce available headroom — compare against current dwelling footprint.
Land tax (investment, 2025 thresholds)	\$16,020/year	Land value \$2,070,000 exceeds 2025 threshold \$1,075,000. \$100 + 1.6% × \$995,000 = \$16,020/year. PPOR exempt. Investment property, trust, and company holdings are taxable. Verify current thresholds at revenue.nsw.gov.au .

3. Property & Development Rights

Control	Value	Reference
Zone	R2 — Low Density Residential	Ku-ring-gai Local Environmental Plan 2015
Max Building Height	9.5 m	Clause 4.3
Floor Space Ratio	0.3	Clause 4.4
Min Lot Size (LEP)	930 m ²	Clause 4.1
Actual Lot Area	1,802 m ²	NSW Valuation Service
Land Value (excl. buildings)	\$2,070,000.0 (as at 1 July 2025) (\$1,149/m ²)	NSW Valuation Service

Maximum permissible GFA: 541 m² (lot area 1,802 m² × FSR 0.3:1). Actual achievable GFA subject to setbacks, height plane, and DCP controls.

Subdivision: Lot area (1,802 m²) is less than 2× minimum lot size (930 m²). Subdivision unlikely without variation.

Land Value Trend (excl. buildings — NSW Valuation Service):

Valuation Date	Land Value	Change
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1 July 2021	\$1,520,000	—
1 July 2022	\$1,890,000	+\$370,000 (+24.3%)
1 July 2023	\$1,890,000	+\$0 (+0.0%)
1 July 2024	\$2,070,000	+\$180,000 (+9.5%)
1 July 2025	\$2,070,000	+\$0 (+0.0%)

Permitted uses (R2): Dwelling house · Secondary dwelling (granny flat) · Home business · Dual occupancy (subject to controls)

4. DCP Development Controls — Setbacks

DCP setback data extracted for Inner West LGA (Marrickville, Leichhardt, Ashfield precincts). For other LGAs, obtain DCP controls directly from Council.

5. Environmental Constraints

Acid Sulfate Soils: Class 5

Subaqueous — applies to tidal wetlands/waterways. Works may still require management plan.

Biodiversity: Biodiversity

Biodiversity Sensitivity — any development application on this property will likely require a Biodiversity Development Assessment Report (BDAR) under the Biodiversity Conservation Act 2016. Cost: \$15,000–\$50,000+. Timeline impact: 4–12 months.

Riparian: Category 3a

Riparian Land — property adjoins or includes a waterway corridor. Development setbacks apply under the LEP and Water Management Act 2000. Check council's riparian mapping.

6. Heritage

No heritage listing identified via NSW Planning Portal.

Note: Heritage Conservation Area (HCA) status is not assessed here. Check Council's heritage maps separately.

7. State Environmental Planning Policy (SEPP) Overlays

SEPP / Instrument	Practical Implication
State Environmental Planning Policy (Sustainable Buildings) 2022	BASIX certificate required for new dwellings and renovations exceeding \$50,000.
State Environmental Planning Policy (Transport and Infrastructure) 2021	Check for infrastructure corridors or classified road setback requirements.

Statewide SEPP applicability — the following instruments apply across NSW regardless of property location and do not appear as spatial overlays:

Instrument	When it applies	Key implication
SEPP (Sustainable Buildings) 2022	All residential development	BASIX certificate required for new dwellings and alterations/additions exceeding \$50,000. Must demonstrate energy, water and thermal comfort targets.
SEPP (Housing) 2021	Residential zones — dual occ, secondary dwellings, complying dev	Enables secondary dwellings (450 m² lot min), dual occupancy, and low-rise medium density housing as complying development in eligible zones. Sets minimum site standards that override some LEP controls.

SEPP (Transport and Infrastructure) 2021	Land adjoining classified roads and rail corridors	9 m minimum setback from classified road boundary for new dwellings. Noise and vibration assessment required for development near rail. No classified road frontage identified at this property.
SEPP (Resilience and Hazards) 2021	All land — flood, coastal hazard, contaminated land	Overrides local controls for land affected by natural hazards. Flood provisions apply statewide — council must have regard to flood planning levels. Contaminated land requires remediation before sensitive uses.

PropCode and standard s10.7 certificates list some statewide instruments but do not assess applicability to the specific property. The spatial SEPP overlays above (Section 7 table) identify instruments with a geographic footprint at this location.

8. Nearby Development Activity (200m, 12 months)

No development applications lodged within 200m in the past 12 months. Low immediate construction disruption risk from neighbouring properties.

9. Disclosure Notes

s10.7 Certificate: This report is NOT a substitute for a Section 10.7 Planning Certificate. A s10.7(5) certificate from Council is the authoritative disclosure document for conveyancing under Section 149 of the Environmental Planning and Assessment Act 1979.

Environmental overlays: Biodiversity, riparian, wetlands, landslide and flood data sourced from NSW Planning Portal. These layers are not included in s10.7(2) certificates and may not appear on standard title searches. Data accuracy is subject to NSW Government mapping precision — verify with council for site-specific advice.

Title classification: Strata and community title identification sourced from NSW Planning Portal. Company title properties return as Torrens in the land register and may not be identified automatically — confirm title type via title search for older inner Sydney apartment buildings.

DCP provisions: Development Control Plan (DCP) setback and built form controls are available for Inner West LGA properties (Marrickville, Leichhardt, Ashfield precincts). Coverage varies by precinct — confirm with council for site-specific controls.

Data sources and currency: NSW Planning Portal layerintersect data current as at report date (2026-04-16). NSW Valuation Service land values reflect the most recently published base date shown in the report. PostGIS spatial overlays (biodiversity, riparian, wetlands, landslide, flood) reflect the last ingestion from NSW Government ArcGIS services. Data is sourced from NSW Government public databases. No representation is made as to its completeness or accuracy.

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